



U.S. Department
of Transportation

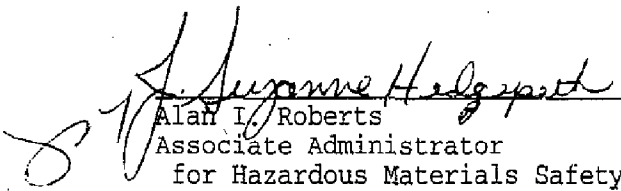
Research and
Special Programs
Administration

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 4291 (EXTENSION)
FOURTH REVISION March 28, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 4291 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to March 31, 1997. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 30 1995

(DATE)

Dist: FHWA USCG

EXEMPTION HOLDER

APPLICATION DATE

United Technologies Corporation
San Jose, CA

May 18, 1995

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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**Research and
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400 Seventh Street, S.W.
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MAR 28 1988

DOT-E 4291
(FOURTH REVISION)

1. Pacific Engineering and Production Company of Nevada, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a certain oxidizer for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of non-DOT specification portable tanks and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

United Technologies, Sunnyvale, California - PTE-1.
Kerr McGee Chemical Corporation, Oklahoma City, Oklahoma -
PTE-2.

2. BASIS. This exemption is based on the application from Pacific Engineering and Production Company of Nevada dated June 16, 1987, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

United Technologies application dated June 17, 1987.
Kerr McGee Chemical Company's application dated June 1,
1987

3. HAZARDOUS MATERIALS (Descriptor and class). Ammonium perchlorate, classed as oxidizer.

4. PROPER SHIPPING NAME (49 CFR 172.101). Ammonium perchlorate.

5. REGULATION AFFECTED. 49 CFR 173.239a(a)(2).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification 74 cubic foot capacity aluminum portable tank built in accordance with United Technology drawing No. Co. 2944, Revision C or Fabricated Metals drawing for Model 6354 FloBin on file with the Office of Hazardous Materials Transportation (OHMT).

For shipment by rail, only the rail car having reporting mark SP 598122 is authorized. The car must be equipped with roller bearings and AAR approved composition brake shoes. If a wood floor is used, it must be effectively treated with a fire retardant solution, compatible with the lading, and maintained in an effective state; spark shields are required. The car must be further equipped with adequate facilities for substantial blocking, bracing and tie-down. Each tank, filled or empty, must be inspected before loading on the car, to ascertain that there is no residue of lading adhering to the outside of the packaging, closures, and any fittings.

For shipment by highway, tanks must be transported in closed van type trailers in full compliance with Section 177.834(g); in addition, open top equipment may be utilized if the blocking, bracing, and tie-down arrangement meets the requirements of 393.100-106 of this Title.

8. SPECIAL PROVISIONS.

a. Each portable tank must be reinspected and retested once every 2 years in accordance with 49 CFR 173.32(e). Tanks filled prior to the marked retest date may be shipped without being emptied and retested, subject to a visual inspection. However, such tanks may not be refilled and transported before being retested.

b. Each portable tank must be plainly marked on the side in two places 180° apart, in letters at least two inches high on a contrasting background, "DOT-E 4291."

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. August 31, 1989.

Issued at Washington, D.C.:

Sa/ J. Suzanne Hedgcock
Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

MAR 28 1988

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA.